

Agent Selection & Commission Negotiation Checklist — Queensland

Choosing the right agent, and understanding what you're actually agreeing to.

Correct as at July 2026. General information only, not legal advice.

Section 1 — Shortlisting Agents

- ☐ [] **Interview at least 3 agents** and compare their recent comparable sales in your specific suburb.
- ☐ [] **Ask for a genuine appraisal, not just the highest number** — cross-check against real recent comparable sales.
- ☐ [] **Ask how they'll market the property** and get this in writing.
- ☐ [] **Check their recent track record for your specific property type.**
- ☐ [] **Ask directly about any referral relationships** with conveyancers, stylists, or other service providers, and whether they receive a fee for those recommendations.

Section 2 — Understanding the Agency Agreement

- ☐ [] **Understand this is a legally binding contract governed by the Property Occupations Act 2014** — read every clause, not just the commission rate.
- ☐ [] **Confirm the commission rate is negotiable** — it isn't fixed or regulated at a set percentage in Queensland.
- ☐ [] **Understand you'll typically sign a Form 6 appointment** — this sets out the agent's authority, commission, and marketing cost arrangements; review it carefully rather than treating it as a formality.
- ☐ [] **Clarify exclusive vs. open listing terms** and how long any exclusive period runs.
- ☐ [] **Check marketing cost responsibility** — confirm upfront whether costs are included in commission or charged separately, in writing.

Section 3 — Your New Disclosure Obligation as a Seller

- ☐ [] **Understand you now have a significant new legal obligation.** Since 1 August 2025, you (as seller) must provide a **Seller Disclosure Statement (Form 2)** and prescribed certificates to buyers **before they sign** — your agent should be actively helping you prepare for this, not treating it as an afterthought.
- ☐ [] **Ask your agent how they'll help you meet this obligation on time** — given buyers can terminate and reclaim their deposit if disclosure is missing or defective, delays here can cost you a sale.
- ☐ [] **Engage your solicitor/conveyancer early to prepare the disclosure statement and certificates** — coordinate this with your agent's proposed marketing timeline so you're not caught out.

Section 4 — Choosing Your Method of Sale

- ☐ [] **Compare auction vs. private treaty for your specific property and market conditions.**
- ☐ [] **If going to auction, understand there's no cooling-off period for the buyer** once the hammer falls, but your Seller Disclosure Statement obligations still apply before the buyer signs anything.
- ☐ [] **Discuss with your agent how the new disclosure regime affects auction timing** — since disclosure must occur before signing, not before auction day specifically, but practical readiness still matters for buyer confidence.

Section 5 — Before You Sign

- ☐ [] **Have a solicitor review the agency agreement** if you're at all uncertain.
- ☐ [] **Clarify the termination process** — what happens if you want to change agents partway through the listing period.
- ☐ [] **Confirm who's preparing your Seller Disclosure Statement and certificates**, and the realistic timeline for having them ready.
- ☐ [] **Ask for references from recent vendors**, not just buyer testimonials.

Quick Reference — Key Points on QLD Agent Agreements

ITEM	DETAIL
Commission rates	Not fixed/regulated — negotiable
Governing legislation	Property Occupations Act 2014 (QLD)
Agency appointment	Typically Form 6
Seller Disclosure Statement	Your obligation, mandatory since 1 August 2025
Consequence of defective disclosure	Buyer can terminate, full deposit refund

